

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1163

 By: Hall and Haste of the
 Senate

6 and

7 Caldwell (Trey) and Kane of
8 the House

9
10 An Act relating to the Department of Human Services;
11 making an appropriation; stating purpose; requiring
12 that certain funds be utilized for certain purpose;
13 requiring certain funding be maintained at certain
14 levels; requiring certain joint approval prior to
15 certain actions; requiring certain transfers to
16 certain funds; appropriating certain federal funds
17 for certain program; authorizing early allocation of
18 funds under certain conditions; authorizing certain
19 transfers; requiring the maintenance of certain
20 records; providing budgeting and expenditure
21 limitations and procedures; requiring and prohibiting
22 certain budget procedures; providing an effective
23 date; and declaring an emergency.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. There is hereby appropriated to the Department of
21 Human Services from any monies not otherwise appropriated from the
22 General Revenue Fund of the State Treasury for the fiscal year
23 ending June 30, 2027, the sum of Two Hundred Seventy-two Thousand
24 Dollars (\$272,000.00) or so much thereof as may be necessary to

1 carry out the provisions of Enrolled Senate Bill No. 1847 of the 2nd
2 Session of the 60th Oklahoma Legislature.

3 SECTION 2. From the funds appropriated to the Department of
4 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
5 of the 60th Oklahoma Legislature, the sum of Seven Million Seven
6 Hundred Twenty-nine Thousand One Hundred Ninety-seven Dollars
7 (\$7,729,197.00) shall be used to replace funding no longer available
8 due to the reduction of federal matching dollars.

9 SECTION 3. From the funds appropriated to the Department of
10 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
11 of the 60th Oklahoma Legislature, the Department shall maintain the
12 funding levels for senior nutrition programs from the fiscal year
13 ending June 30, 2026. The Oklahoma Legislature requires joint
14 approval from the President Pro Tempore of the Oklahoma State Senate
15 and the Speaker of the Oklahoma House of Representatives before any
16 senior nutrition sites may be closed due to declining attendance or
17 increased operational costs during the fiscal year ending June 30,
18 2027.

19 SECTION 4. In addition to the funding required in Section 3 of
20 this act, from the funds appropriated to the Department of Human
21 Services in Enrolled Senate Bill No. 1177 of the 2nd Session of the
22 60th Oklahoma Legislature, the sum of Two Million Five Hundred
23 Thousand Dollars (\$2,500,000.00) shall be used to maintain the
24 permanent second meal per day for the ADvantage Waiver Program.

1 SECTION 5. From the funds appropriated to the Department of
2 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
3 of the 60th Oklahoma Legislature, the sum of Five Million Dollars
4 (\$5,000,000.00) shall be used to carry out the provisions of
5 Enrolled Senate Bill No. 1806 of the 2nd Session of the 60th
6 Oklahoma Legislature.

7 SECTION 6. From the funds appropriated to the Department of
8 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
9 of the 60th Oklahoma Legislature, the sum of Two Hundred Fifty
10 Thousand Dollars (\$250,000.00) shall be used to carry out the
11 provisions of Enrolled Senate Bill No. 1377 of the 2nd Session of
12 the 60th Oklahoma Legislature.

13 SECTION 7. From the funds appropriated to the Department of
14 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
15 of the 60th Oklahoma Legislature, the sum of Four Million Five
16 Hundred Sixty Thousand Dollars (\$4,560,000.00) shall be used to
17 carry out the provisions of Enrolled House Bill No. 2778 of the 1st
18 Session of the 60th Oklahoma Legislature.

19 SECTION 8. From the funds appropriated to the Department of
20 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
21 of the 60th Oklahoma Legislature, the sum of Twenty-five Million
22 Five Hundred Seventy-five Thousand Dollars (\$25,575,000.00) shall be
23 used to provide additional state funding for the administration of
24 the Supplemental Nutrition Assistance Program.

1 SECTION 9. From the funds appropriated to the Department of
2 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
3 of the 60th Oklahoma Legislature, the Department is authorized to
4 transfer the sum of Three Million Dollars (\$3,000,000.00) to the 2-
5 1-1 Hotline Revolving Fund, created in Enrolled Senate Bill No. 1290
6 of the 2nd Session of the 60th Oklahoma Legislature.

7 SECTION 10. From the funds appropriated to the Department of
8 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
9 of the 60th Oklahoma Legislature, the sum of Thirty-eight Million
10 Nine Hundred Ninety-three Thousand Seven Hundred Sixty-one Dollars
11 (\$38,993,761.00) shall be used to provide additional state funding
12 for the ADvantage waivers.

13 SECTION 11. From the funds appropriated to the Department of
14 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
15 of the 60th Oklahoma Legislature, the Department shall maintain the
16 funding levels for provider rates and service authorizations for the
17 Community, Homeward Bound, In-Home Supports for Adults, In-Home
18 Supports for Children, and ADvantage waivers from the fiscal year
19 ending June 30, 2026.

20 SECTION 12. From the funds appropriated to the Department of
21 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
22 of the 60th Oklahoma Legislature for the support of the
23 Developmental Disability Services Division, in addition to services
24 provided in the fiscal year ending June 30, 2026, the agency may

1 also budget for and expend funds for family and self-advocate
2 onboarding meetings and services, professional development for case
3 management and providers, expansion of crisis services, and
4 enhancements to intake processes for the purpose of ensuring a
5 stronger, more responsive service delivery system for Oklahomans
6 with developmental disabilities.

7 SECTION 13. From the funds authorized to be transferred to the
8 Developmental Disability Services Revolving Fund in Enrolled Senate
9 Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature,
10 no funds may be expended for administrative services, targeted case
11 management, Medicaid match for any ICF/IID services or other non-
12 Medicaid match services not described in Section 11 of this act.

13 SECTION 14. From the funds appropriated to the Department of
14 Human Services in Enrolled Senate Bill No. 1177 of the 2nd Session
15 of the 60th Oklahoma Legislature, the Department of Human Services
16 shall transfer Five Million Six Hundred Thousand Dollars
17 (\$5,600,000.00) to the credit of the Child Abuse Multidisciplinary
18 Account established in Section 1-9-103 of Title 10A of the Oklahoma
19 Statutes, which shall be distributed according to Section 1-9-104 of
20 Title 10A of the Oklahoma Statutes.

21 SECTION 15. There is hereby appropriated to the Department of
22 Human Services all federal monies received by the state during the
23 fiscal year ending June 30, 2027, from the Temporary Assistance for
24

1 Needy Families Block Grant and the Child Care and Development Block
2 Grant to meet the provisions of federal law relating to such grants.

3 SECTION 16. The Director of Human Services may request through
4 the Director of the Office of Management and Enterprise Services the
5 early transfer by the Oklahoma Tax Commission of tax collections to
6 the General Revenue Fund for the purpose of early allocation to the
7 Department of Human Services disbursing funds to alleviate cash flow
8 problems.

9 SECTION 17. A. The Director of the Office of Management and
10 Enterprise Services shall transfer monies appropriated from the
11 General Revenue Fund to the Department of Human Services disbursing
12 funds in the amounts and ratios requested by the agency except that
13 the cumulative amount transferred shall not exceed the cumulative
14 amount of equal monthly allotments of the appropriations from the
15 General Revenue Fund.

16 B. Monies appropriated or collected for the fiscal year ending
17 June 30, 2027, may be transferred to these disbursing funds for the
18 fiscal year ending June 30, 2026, to satisfy encumbrances and
19 obligations of the fiscal year, provided that monies equal in amount
20 are transferred from appropriations or collections for the fiscal
21 year ending June 30, 2026, to the disbursing funds for the fiscal
22 year ending June 30, 2027, to satisfy encumbrances and obligations
23 of the fiscal year. All transfer requests shall be in writing to
24 the Director of the Office of Management and Enterprise Services.

1 C. The Department of Human Services shall maintain records of
2 such inter-year transfers.

3 SECTION 18. The Director of Human Services may request the
4 Director of the Office of Management and Enterprise Services to
5 transfer monies between the Department of Human Services Support
6 Service Providers Grant Program Fund and the Human Services
7 Disbursing Fund or the Human Services Medical and Assistance Fund,
8 as needed for the expenditure of funds.

9 SECTION 19. This act shall become effective July 1, 2026.

10 SECTION 20. It being immediately necessary for the preservation
11 of the public peace, health, or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

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15 DIRECT TO CALENDAR.
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